

24NNCV02731 24NNCV02731

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Case Number: 24NNCV02731 Hearing Date: September 11, 2026 Dept: A

TENTATIVE RULING

SEPTEMBER 11, 2026

MOTION FOR SANCTIONS

Los

Angeles Superior Court Case # 24NNCV02731

MP: Plaintiff

Perla Ruiz

RP: No

opposition received

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at

BurDeptA@LACourt.ca.gov or by telephone at (818) 260-8412.

ALLEGATIONS:

On July 5, 2024, Perla Ruiz ("Plaintiff") filed the complaint against OI Chicks LLC ("Defendant") for Enforcement Under the Private Attorneys General Act ("PAGA").

Plaintiff brings this representative action, alleging that Defendant violated various wage and hour laws, including failure to provide employment records, pay overtime/double time, provide meal and rest breaks, pay minimum wages, keep accurate and provide itemized wage statements, pay reporting time, pay "split shift" premiums, timely pay wages during employment, timely pay wages upon termination, reimburse necessary business-related expenses and costs, and provide notice of paid sick time and accrual.

MOTION ON CALENDAR:

On May 6, 2026, Plaintiff filed a Motion for Further Monetary Sanctions, Issue Sanctions, and Evidentiary Sanctions. The Court is not in receipt of an opposition brief.

The Court notes that, pursuant to C.R.C. Rule 8.54(c), a failure to oppose a motion may be deemed consent to its being granted.

LEGAL STANDARD:

Under C.C.P. § 2023.030, the Court may impose issue sanctions ordering that designated facts be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. (C.C.P. § 2023.030(b).) The Court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence. (C.C.P. § 2023.030(c).) Any motion for issue or evidentiary sanctions must be accompanied by a separate statement. (CRC Rule 3.1345(a)(7).)

Evidence or issue sanctions may be imposed only after parties violated discovery orders compelling further responses, except in exceptional circumstances, including where there was sufficiently egregious misconduct regarding a failure to respond to discovery, or a prior discovery order would be futile. (New Albertsons,

Inc. v. Sup. Ct. (2008) 168 Cal.App.4th 1403, 1426.) Two prerequisites for the imposition of non-monetary sanctions are: (1) there must be a failure to comply; and (2) the failure must be willful. (Vallbona v. Springer (1996) 43 Cal.App.4th 1525, 1545.) The party requesting sanctions under C.C.P. §§ 2023.030 and 2023.010(g) must establish that the other party has failed to comply or disobeyed a court order to provide discovery. (C.C.P. § 2023.010(g); Miranda v. 21st Century Ins. Co. (2004) 117 Cal.App.4th 913, 929 [first requirement of failure to comply].) To avoid sanctions, the burden of proving that a discovery violation was not willful is on the party on whom the discovery was served. (Cornwall v. Santa Monica Dairy Co. (1977) 66 Cal.App.3d 250, 252- 253.)

C.C.P. § 2023.030(a) states: "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Under California law, a discovery order cannot go further than is necessary to accomplish the purpose of discovery. (Newland v. Superior Court (1995) 40 Cal. App. 4th 608, 613.) The purpose of discovery sanctions is to prevent abuse of the discovery process and correct the problem presented. (McGinty v. Superior Court (1994) 26 Cal. App. 4th 204, 210.)

ANALYSIS:

Plaintiff moves for: (1) further monetary sanctions in the amount of \$5,157.70 against Defendant and its counsel of record; (2) issue sanctions; and (3) evidentiary sanctions, for Defendant's violation of the Court's October 31, 2025, November 14, 2025, and November 21, 2025 orders.

The following background is

relevant:

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On October 31, 2025, the Court granted Plaintiffs' opposed Motion to Compel Defendant's Answers to Form Interrogatories – Employment (set one) ("E-FROG"). The Court noted that while Defendant represented it would serve code-complaint responses without objection prior to the hearing, the opposition and reply briefs showed that Defendant had not yet served responses. No appearances were made at the hearing to indicate whether responses were in fact served prior to the hearing. The Court granted the motion and ordered initial responses, without objection, within 30 days of the order. The Court imposed \$2,082.70 in sanctions against Defendant and its counsel of record, jointly and severally, to be payable within 30 days of the order. (Mot., Ex. A.)

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On November 14, 2025, the Court granted Plaintiff's opposed Motion to Compel Defendant's Answers to Form Interrogatories – General (set one) ("FROG"). Again, Defendant represented it would serve code-complaint responses prior to the hearing. No appearances were made at the hearing to indicate whether responses were in fact served prior to the hearing. The Court granted the motion and ordered initial responses, without objection, within 30 days of the order. The Court imposed \$1,582.70 in sanctions against Defendant and its counsel of record, jointly and severally, to be payable within 30 days of the order. (Mot., Ex. B.)

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On November 21, 2025, the Court granted Plaintiff's opposed Motions to Compel Defendant's initial responses to Special Interrogatories ("SROG"), set one, and Request for Production of Documents ("RPD"), set one; and denied Plaintiff's opposed Motion to Deem the Requests for Admissions ("RFA"), set one, Admitted. With respect to the RFA motion, the Court denied the motion because Defendant had shown that it served verified RFA responses on November 20, 2025 before the hearing. With respect to the SROG and RPD motions, Defendant represented it would serve responses. Although the parties appeared to the hearing, out of the abundance of caution, the Court granted the SROG and RPD motions, ordering Defendant to

provide verified responses, without objection, within 30 days of the order. The Court imposed \$3,748.10 in sanctions against Defendant and its counsel of record, jointly and severally, to be payable within 30 days of the order.

The Court stated:

The Court notes that it should not take over a year to get responses to discovery which was agreed to be provided. Such actions unnecessarily delay cases and place a burden on the court system at a time when case loads are ever increasing and litigants have a challenging time obtaining timely resolution of disputes. The Court is sympathetic to the workloads which lawyers have, as apparently is plaintiff's counsel who granted multiple extensions before resorting to motion practice. It was only the filing of the motion which resulted in a response, albeit one that was not code compliance and unverified.

(Mot.,

Ex. C [Nov. 21, 2025 Minute Order at pp.8-9].)

A.

Issue and Evidentiary Sanctions

Plaintiff seeks issue sanctions

"prohibiting Defendant from contesting facts relating to Plaintiff's employment, wages, hours, and payroll practices and/or that similar facts apply to the aggrieved employees that are the subject of Defendant's unanswered discovery." (Mot. at 4:18-21.) Additionally, Plaintiff seeks evidentiary sanctions "precluding Defendant from introducing evidence at motion practice or trial on subjects to Plaintiff's outstanding discovery." (Id. at 4:21-23.) Although a separate statement is not provided, Plaintiff lists the specific matters she seeks issue and evidentiary sanctions imposed upon on pages 9-11 of the motion.

For issue sanctions, Plaintiff

requests the following facts be deemed established for the purposes of this action that:

1. Plaintiff was employed by Defendant and suffered at least one labor code violation due to Defendant's policies and practices, and thus has standing to pursue a representative PAGA claim.

2. Defendant failed to provide employment records in violation of Labor Code §§ 226, 432, and 1198.5 to Plaintiff and to each Aggrieved Employee as defined in the Complaint;

3-6. Defendant failed to (3) pay overtime and double time in violation of Labor Code § 510; (4) provide rest and meal periods in violation of Labor Code §§226.7, 512(a); (5) pay minimum wage in violation of Labor Code §§ 1182.2, 1194, 1197, 1197.1; and (6) keep accurate payroll records and provide itemized wage statements in violation of Labor Code §§ 226(a), 1174(d), 1198, as well as the applicable Wage Orders (“WOs”) during every pay period at issue to Plaintiff and to each Aggrieved Employee;

7-8. Defendant failed to pay (7) reporting time wages and (8) split shift wages, in violation of applicable WOs during every pay period at issue to Plaintiff and to each Aggrieved Employee;

9-12. Defendant failed to (9) pay all wages earned on time in violation of Labor Code § 204; (10) pay all wages earned upon discharge or resignation in violation of Labor Code §§ 201, 202, and 203; (11) reimburse necessary, business-related expenses in violation of Labor Code §§ 2800 and 2802; and (12) provide notice of paid sick time and accrual in violation of Labor Code § 24, during every pay period at issue to Plaintiff and to each Aggrieved Employee.

(Mot. at pp.9-10.)

For evidentiary sanctions,
Plaintiff seeks:

a) Preclusion of any payroll, timekeeping, and policy evidence that seeks to establish compliance with the California Labor Code. Defendant should be precluded from introducing any documentary evidence, testimony, or argument in any motion practice or trial concerning payroll records, timekeeping data, meal- and rest-period practices, wage statements, or related policies, to the extent such evidence was required to be disclosed in response to Plaintiff’s FROG, SROG, and RPD.

b) Preclusion of any evidence supporting any of Defendant’s Affirmative Defenses. Defendant should be precluded from offering any documentary evidence or testimony in support of any affirmative defense that

depends on information or documents withheld in violation of the Court's discovery orders, including defenses relating to wage compliance, recordkeeping, or lawful employment practices.

c) Witness Preclusion. Defendant should be precluded from calling any witness—lay or expert—whose identity, knowledge, or anticipated testimony should have been disclosed in response to Plaintiff's outstanding interrogatories or document requests.

(Mot. at pp.10-11.)

As of his May 6, 2026

declaration, Plaintiff's counsel, Joseph C. Rocha, states that Defendant has not produced any objection-free, verified responses. (Rocha Decl., ¶10.) On January 13, 2026, Mr. Rocha emailed Defendant regarding responses and payment of sanctions, and defense counsel responded that it would comply "early next week." (Id., ¶11, Ex. D.) On January 14, 2026, defense counsel Brendan Sapein responded that the client had indicated payment had been issued and that "we will be getting the production of documents to you this week, and the verified responses early next week." (Id., Ex. D.) On January 20, 2026, Mr. Rocha emailed defense counsel for an update regarding production and payment, and Mr. Sapien responded on January 26, 2026 that Plaintiff would have "everything by the end of the week" (or presumably January 30, 2026). (Id., ¶12, Ex. D.) On February 2, 2026, Mr. Rocha emailed defense counsel advising them Plaintiff would file a second motion to compel if the Court's orders were not met by February 6, 2026. (Id., ¶13, Ex. D.) On February 9, 2026, defense counsel responded that they would have payment by tomorrow and "we will be getting you the documents and response by Thursday of this week." (Id., ¶14, Ex. D.) On February 17, 2026, Mr. Rocha emailed defense counsel that his office received the sanctions payment and asked for updates on responses. (Id., ¶15, Ex. D.) On February 19, 2026, Mr. Rocha sent another email seeking discovery responses. (Id.) On February 23, 2026, Mr. Sapien responded that they would be "rolling out production to you by tomorrow." (Id.) On February 25, 2026, Mr. Rocha sent an email seeking an update, but did not hear back. (Id.)

On September 1, 2026, Defendant filed a Substitution of Attorney form, stating that its then-attorney Brendan Sapein of O'Hagan Meyer substituted out of the case and Defendant is now being

represented by Mr. Sapien of Rutan & Tucker, LLP. However, Defendant did not file an opposition by August 28, 2026.

In light of the repeated discovery violations and the numerous informal attempts by Plaintiff to resolve the discovery issues, the Court grants this motion in part. As a result of the discovery violations, Defendant is precluded from introducing any evidence related to their affirmative defenses, except those already produced by Defendant in written responses or in document production or those which have been produced by the Plaintiff in discovery. Likewise, Defendant is precluded from introducing any evidence (documentary, witness testimony, or arguments) in defense of Defendant's alleged Labor Code and WO violations, except those already produced by Defendant in written responses or in document production. The Court declines to impose the issue and evidentiary sanctions sought by Plaintiff as such would be tantamount to terminating sanctions which is disfavored prior to imposition of escalating sanctions.

B.

Monetary Sanctions

Although the Court previously ordered sanctions, Plaintiff seeks an additional \$5,157.70 in monetary sanctions against Defendant and its counsel, O'Hagan Meyer, jointly and severally. This accounts for five hours Plaintiff's counsel Joseph C. Rocha spent on pursuing this matter and drafting the motion, two anticipated hours to draft a reply and attend the hearing at \$725/hour, and \$82.70 in filing fees. (Rocha Decl., ¶16.)

Mr. Rocha states that Defendant has made a single late payment of \$3,748.10 in response to the Court's prior orders, such that \$3,665.40 in past sanctions is still due. (Rocha Decl., ¶10.) He seeks a total of \$8,823.40 in sanctions for the \$5,157.70 he is currently requesting and the \$3,665.40 in past-due sanctions. (Id., ¶17.)

With respect to the remaining \$3,665.40 in past-due sanctions, the request is denied. Plaintiff may enforce the orders that imposed monetary sanctions through the execution of judgment laws. (Newland v. Superior Court (1995) 40 Cal. App. 4th 608, 615 [noting that many

attorneys seem to be unaware that monetary sanction orders are enforceable through the execution of judgment laws].)

Orders imposing monetary sanctions have the force and effect of a money judgment, and are immediately enforceable through execution. (Id.) The Court will not reimpose those sanctions already entered and due.

With respect to the additional

\$5,157.70 monetary sanctions request, the Court will award \$3,625 for the time spent on this motion (= 5 hours at \$725/hour), plus \$82.70 in filing fees, for a total of \$3,707.70. The Court declines to award anticipated fees for the reply and attending the hearing as the motion is unopposed.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiff Perla Ruiz's Motion for Sanctions came on regularly for hearing on September 11, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

PLAINTIFF'S

MOTION FOR SANCTIONS IS GRANTED IN PART AND DENIED IN PART. THE COURT GRANTS THE MOTION IN PART AND WILL

IMPOSE EVIDENTIARY SANCTIONS AGAINST DEFENDANT SUCH THAT DEFENDANT SHALL BE:

Defendant

IS precluded from introducing any documentary evidence, testimony, or argument in any motion practice or trial concerning payroll records, timekeeping data, meal- and rest-period practices, wage statements, or related policies, to the extent such evidence was required to be disclosed in response to Plaintiff's FROG, SROG, and RPD.

Regarding Preclusion of any evidence supporting any of Defendant's Affirmative Defenses: Defendant IS precluded from offering any documentary evidence or testimony in support of any affirmative defense that depends on information or documents withheld in violation of the Court's discovery orders, including defenses relating to wage compliance, recordkeeping, or lawful employment practices.

Regarding Witness Preclusion: Defendant IS precluded from calling any LAY OR EXPERT witness whose identity, knowledge, or anticipated testimony should have been disclosed in response to Plaintiff's outstanding interrogatories or document requests.

THE MOTION IS
DENIED IN PART WITH RESPECT TO ISSUE SANCTIONS.

THE MOTION IS
GRANTED IN PART WITH RESPECT TO MONETARY SANCTIONS. DEFENDANT AND ITS COUNSEL OF RECORD, JOINTLY
AND SEVERALLY, ARE ORDERED TO PAY MONETARY SANCTIONS IN THE AMOUNT OF \$3,707.70 TO PLAINTIFF, BY AND THROUGH COUNSEL, WITHIN 30 DAYS OF THIS
ORDER.

PLAINTIFF TO PROVIDE NOTICE.

IT IS SO ORDERED.